Fw: Request to inform status of my all vigilance cases

From: JADAB KUMAR PAL (jadabpal@yahoo.co.in)

To: ceaf@isical.ac.in; dceb@isical.ac.in

Cc: ceaf.isi@gmail.com; pbanik@isical.ac.in; banikpabitra@gmail.com

Bcc: gsacharya63@gmail.com; partha8705@gmail.com; g.durgam@gmail.com; arpan@isical.ac.in; utpalmahato81@gmail.com; legalcell@isical.ac.in

Date: Friday, 27 January, 2023, 07:12 pm IST

Jadab Kumar Pal, Innovation and IT Management (IIM Bangalore), Successful Negotiation: Essential Strategies and Skills (University of Michigan), Recruiting, Hiring and Onboarding Employees (University of Minnesota), America's Unwritten Constitution (Yale University), Constitutional Reforms in Russia (Saint Petersburg State University), International Leadership and Organizational Behavior (Università Bocconi), Communicating Strategically (Purdue University), Justice (Harvard University), Forensic Accounting and Fraud Examination (West Virginia University), Freedom and Protest: Magna Carta and its Legacies (University of London), International Organizations Management (Université de Genève)

Member, Advisory Board, Dept. of Law, Brainware University, WB
Honorary Professor, MAB Institute of Juridical Science, WB
Former Teacher-in-Charge, Jalpaiguri Law College, WB
Former Lecturer-in-Law, Dhubri Law College, Assam
Former Junior Scientist, Pollution Control Board, WB
Former Assistant Registrar, IIT Kharagpur, WB
Shunned WBCS (Judicial)

Deputy Chief Executive (Administration) GA
Indian Statistical Institute, Kolkata – 700108

The 27th January 2023

To
The Chief Executive (A&F)
Indian Statistical Institute
203 B T Road, Kolkata – 700108, WB

Sub: Request to inform status and share copy of complaint of my all vigilance complaints.

Respected Sir,

Reference to the above e-mail dated 27/01/2023 of Vigilance Officer (Part Time), I would like to inform you most humbly that the VO (PT) has admitted the fact that he has received a complaint via Central Vigilance Commission, vide his letter dated 25.11.2020, copy attached for your ready reference.

Now, he is denying the matter of complaint letter in his possession under the pretext that he has yet to receive the complaint directly from the complainant. Yet in his e-mail dated 27.01.2023 he has admitted that he is the custodian of the Complaint.

As per Para 3 (iii) of CVC Office Memorandum No. 021-AIS-1(2), dated 19th April 2021, a copy of the complaint shall be made available to the concerned employee whenever the name of the employee is mentioned in the complaint, copy attached.

Sir, denial of sharing the copy of the complaint may attract both civil and criminal proceedings. Moreover, as per OM No.11013/2/2004-Estt.(A), dated 16th February 2004 issued by DoPT and Office Order No.51/08/2004, dated 10th August 2004, issued by CVC, delay in decision making by the VO (PT) in processing vigilance cases is also contrary to the law, copy attached.

I, therefore, request you most humbly to take up and forward this matter to the Competent Authority to inform me the status of my all vigilance complaints and also arrange to provide me copy of the complaints received by the VO(PT) via Central Vigilance Commission as admitted by the VO (PT) on 25.11.2020, vide copy attached.

Regards,
Jai Hind,

(Jadab Kumar Pal)
Dy CE (A) GA
Mobile: 9432489098

Enclosure: As stated above.

CC:
Mr. Pabitra Banik
Vigilance Officer (Part Time)
Indian Statistical Institute
203 B T Road, Kolkata – 700108, WB

Deputy Chief Executive (A) GA
Indian Statistical Institute
203 B T Road, Kolkata - 700108
website: http://www.isical.ac.in

Member, Advisory Board, Dept of Law, Brainware University, WB
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Contact: +91-9432489098

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----- Forwarded message -----
From: pbanik <pbanik@isical.ac.in>
To: JADAB KUMAR PAL <jadabpal@yahoo.co.in>
Cc: Pabitra Banik <banikpabitra@gmail.com> <tq.mohammad@gov.in>
Sent: Friday, 27 January, 2023, 12:00:41 pm IST
Subject: Re: Request to inform status of my all vigilance cases

On 2023-01-25 05:34, JADAB KUMAR PAL wrote:

> Hi Mr. Banik,
>
> PFA.
>
> Happy Republic Day in advance,
>
> Best regards,
>
> Jai Hind,
>
> --Dy CE (A) GA
> _____
> This e-mail may contain confidential, privileged, or protected
> information. If the addressee is not the intended recipient of this
> e-mail, please delete it and notify the sender that it is received in
> error, and do not distribute, or disclose any information herein in
> any manner. This e-mail and its attachment(s) are believed free from
> virus or other defect, but it is the responsibility of the recipient
> to ensure that it free from virus and the sender of this e-mail would
> not be liable in any way for any loss or damage or use thereof. All
> legal disputes are subject to jurisdiction of High Court at Calcutta.

Dear Sir,
In reference to your communication for information status of vigilance cases related to you, please be informed that the office of the Vigilance Officer at ISI has only an investigative role and has no correlation with the outcome of the cases, which are decided by the office of the CVO/MoSPI and/or CVC.

Also, my office has yet to receive the complaint directly from the complainant. Therefore, I am the custodian of the complaint.
So, you'll need to contact the right offices to know the status of the cases you may be concerned about.

Thanking you,
Regards,
Pabitra Banik, PTVO, ISI

Vigilance 021 regarding 15 days .pdf
1.5MB

Delay in Decision making 160. CVC Office Order No. 51-08-2004 dated 10.08.2004.pdf
71.4kB

Delay and Accountability in Decision Making 11013_2_2004-Estt.(A).pdf
112.1kB



PTVO SOUGHT COMMENT 25.11.2020.PDF
97.8kB